

MUNICIPALITIES - CONTINUOUS AT-A-GLANCE MASTER

Core -> origin -> Part IXA -> democracy -> devolution -> finance -> planning -> cases -> reform

01

CORE QUESTION

- 1 Can the elected urban institution control the services for which residents hold it answerable?
- 2 Municipality = Article 243Q institution of self-government; authority remains State-law mediated.
- 3 Answer line: constitutional status is not the same as operational autonomy.

ANSWER USE: CORE QUESTION - connect the exact rule to its mechanism and limit.

02

ORIGIN AND CONSTITUTIONAL TURN

- KEY** 1688 Madras -> 1726 Bombay/Calcutta -> Mayo 1870 -> Ripon 1882 -> Hobhouse 1907-09.
- KEY** 1919 transferred subject -> 1935 provincial subject -> finance/staff/urbanisation committees.

KEY 65th Bill 1989 failed; revised 1990 Bill lapsed; 74th Amendment 1992 effective 1 June 1993.

ANSWER USE: ORIGIN AND CONSTITUTIONAL TURN - connect the exact rule to its mechanism and limit.

03

PART IXA SPINE

- 1 243P definitions; 243Q types; 243R composition; 243S wards; 243T reservation.
- 2 243U duration; 243V disqualification; 243W functions; 243X finance; 243Y SFC; 243Z audit.
- 3 243ZA elections; ZB UTs; ZC exclusions; ZD DPC; ZE MPC; ZF transition; ZG election bar.

ANSWER USE: PART IXA SPINE - connect the exact rule to its mechanism and limit.

TYPES, COMPOSITION AND PARTICIPATION

ANSWER USE: PART IXA SPINE - connect the exact rule to its mechanism and limit.

04

TYPES, COMPOSITION AND PARTICIPATION

- 1 Nagar Panchayat transitional -> Municipal Council smaller -> Corporation larger.
- 2 Industrial township is a notified exception, not a fourth ordinary type.
- 3 Territorial seats direct from wards; experts non-voting; chairperson method by State law.
- 4 Wards Committee mandatory at municipal population ≥ 3 lakh; area sabha needs legal grounding.

ANSWER USE: TYPES, COMPOSITION AND PARTICIPATION - connect the exact rule to its mechanism and limit.

05

RESERVATION, TENURE AND ELECTIONS

- | | |
|--|---|
| KEY SC/ST seats by municipal population; women $\geq$ one-third inclusive; State may enhance women. | KEY Five years from first meeting; hearing before dissolution; election before expiry/within six months. |
| KEY Backward-class reservation is enabling; Krishna Murthy + Gawali triple-test safeguards. | KEY SEC under 243ZA; Kishansing Tomar timing; Fouziya independence; 243ZG election-petition route. |

ANSWER USE: RESERVATION, TENURE AND ELECTIONS - connect the exact rule to its mechanism and limit.

06

DEVOLUTION AND THE 18 MATTERS

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|--|---|
| KEY 243W and Twelfth Schedule are enabling, not self-executing. | KEY Test devolution by activity, decision right, staff, asset, budget, standard and grievance authority. |
| KEY Planning/land; roads/water/fire; health/sanitation/SWM; environment; inclusion; amenities; civic systems. | |

ANSWER USE: DEVOLUTION AND THE 18 MATTERS - connect the exact rule to its mechanism and limit.

07

FINANCE, AUDIT AND EQUALISATION

- | | |
|--|--|
| KEY 243X: State-authorized own taxes/fees + assignments + grants + funds. | KEY 243Y SFC + 280(3)(c) UFC supplementation; grants cannot replace State devolution. |
| KEY Property tax needs complete base, transparent valuation, collection and appeal; user charges need equity. | KEY 243Z State-law accounts/audit; CAG technical support is not automatic sole audit. |

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08

DPC AND MPC

KEY DPC 243ZD: at least 4/5 elected; rural:urban population ratio; consolidates district plans.

KEY Both consider shared resources/infrastructure/environment and forward plans to State Government.

KEY MPC 243ZE: at least 2/3 elected; municipal:Panchayat population ratio; metropolitan draft plan.

KEY Planning committee is not automatically an executive regional government.

ANSWER USE: DPC AND MPC - connect the exact rule to its mechanism and limit.

09

URBAN EXECUTIVE AND FRAGMENTATION

1 Mayor/council policy visibility versus commissioner/staff implementation control varies by State.

2 Parastatals may control land, water, transport or housing; SPVs may hold mission contracts.

3 Reform: clear statutory roles, council-approved outcomes, service agreements, shared data and O&M rules.

ANSWER USE: URBAN EXECUTIVE AND FRAGMENTATION - connect the exact rule to its mechanism and limit.

10

OUTSIDE PART IXA AND URBAN TRANSITION

KEY Cantonment Board: Cantonments Act 2006, central/Defence statutory local authority.

KEY Development authorities and special agencies derive only from their statute/notification/company documents.

KEY Major Port Authority: central Major Port Authorities Act 2021; not a municipality.

KEY Census town != statutory municipality; transition needs criteria, consultation and protected representation.

10

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ANSWER USE: OUTSIDE PART IXA AND URBAN TRANSITION - connect the exact rule to its mechanism and limit.

11

PROGRAMMES, SERVICES AND REFORM

1 Smart Cities 2015 SPV, AMRUT 2.0 2021 and SBM-U 2.0 2021 are dated programmes, not constitutional bodies.

2 Integrate land use, mobility, water, sanitation, waste, public health, climate and informal settlements.

3 Reform chain: activity maps -> cadres -> OSR/SFC -> DPC/MPC -> audit -> service outcomes.

ANSWER USE: PROGRAMMES, SERVICES AND REFORM - connect the exact rule to its mechanism and limit.

12

TRAPS, CASES AND ANSWER SPINE

1 Traps: 1 June 1993; Twelfth = 18; Ward threshold 3 lakh; metro threshold 10 lakh; DPC 4/5; MPC 2/3.

2 Cases: Kishansing Tomar; Fouziya; Krishna Murthy; Gawali; Rahul Ramesh Wagh orders; Suresh Mahajan.

3 Answer spine: define -> constitutional floor -> State-law gap -> named evidence -> reform -> qualification.

4 Verdict: subsidiarity needs accountable coordination where urban scale creates externalities.

ANSWER USE: TRAPS, CASES AND ANSWER SPINE - connect the exact rule to its mechanism and limit.